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which, said lists of hogs, shall be reported by said commissioners, in like manner as other lists of property are now, by law, required to be reported by said commissioners.

1851.

Approved March 8, 1851.

CHAPTER 392.

AN ACT to apportion representation.

§ 1. *Be it enacted by the General Assembly of the Commonwealth of Kentucky*, That the representation for the house of representatives shall be apportioned among the several counties of the commonwealth in the following manner, viz :

Representation
in the House.

To the first district, ten representatives, as follows : to the county of Graves one, Caldwell one, Hopkins one, Trigg one, Union one, Calloway one, Crittenden one, Livingston and Marshall one, Fulton and Hickman one, McCracken and Ballard one.

1st district.

To the second district, ten representatives, as follows : to the county of Muhlenburg one, Henderson one, Ohio one, Breckinridge one, Meade one, Grayson one, Hancock one, Butler and Edmonson one, Daviess one, Christian one.

2d district.

To the third district, nine representatives, as follows : to the county of Todd one, Logan one, Simpson one, Warren one, Allen one, Monroe one, Barren two, Hart one.

3d district.

To the fourth district, nine representatives, as follows : to the county of Adair one, Green one, Wayne one, Pulaski one, Boyle one, Lincoln one, Cumberland and Clinton one, Casey and Russell one, Taylor one.

4th district.

To the fifth district, ten representatives, as follows : to the county of Hardin two, Larue one, Bullitt one, Spencer one, Nelson one, Washington one, Marion one, Mercer one, Anderson one.

5th district.

To the sixth district, ten representatives, as follows : to the county of Madison two, Garrard one, Whitley one, Knox and Harlan one, Laurel and Rockcastle one, Letcher, Pike, and Perry one, Clay and Owsley one, Floyd and Johnson one, Estill one.

6th district.

To the seventh district, eleven representatives, as follows : to the city of Louisville four—thus, to the first and second wards one, to the third and fourth wards one, to the fifth and sixth wards one, and to the seventh and eighth wards one, the county of Jefferson two, Shelby two, Henry one, Oldham one, Trimble and Carroll one.

7th district.

To the eighth district, eight representatives, as follows : to the county of Fayette two, Bourbon one, Scott one, Owen one, Franklin one, Woodford one, Jessamine one.

8th district.

To the ninth district, ten representatives, as follows : to the county of Clarke one, Montgomery one, Bath one, Greenup one, Lewis one, Carter one, Lawrence one, Fleming two, Morgan and Breathitt one.

9th district.

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10th district.

To the tenth district, thirteen representatives, as follows : to the county of Mason two, Bracken one, Nicholas one, Harrison two, Pendleton one, Campbell one, Kenton two, Boone one, Gallatin one, Grant one.

Senatorial
representation.

§ 2. That for the purpose of apportioning the representation in the senate, the state is hereby laid off into thirty eight senatorial districts, as follows, viz : the counties of Hickman, Ballard, Graves, and Fulton, shall compose the first senatorial district; Union, Hopkins, and Crittenden, the second; Christian and Todd, the third; Logan, Simpson, and Butler, the fourth; Daviess and Henderson, the fifth; Warren, Allen, and Edmonson, the sixth; Barren and Monroe, the seventh; Green, Hart, and Taylor, the eighth; Clinton, Cumberland, Wayne, and Russell, the ninth; Casey, Adair, and Boyle, the tenth; Livingston, Caldwell, and McCracken, the eleventh; Breckinridge, Grayson, and Hancock, the twelfth; Ohio and Muhlenburg, the thirteenth; Hardin and Meade, the fourteenth; Jefferson county, two senators—thus, the first, second, third, fourth, fifth, and sixth wards of the city of Louisville, one, the fifteenth; and the seventh and eighth wards of said city, and the residue of said county, one, the sixteenth; Trimble, Oldham, and Henry, the seventeenth; Shelby and Spencer, the eighteenth; Nelson, Larue, and Bullitt, the nineteenth; Marion and Washington, the twentieth; Mercer and Anderson, the twenty-first; Calloway, Trigg, and Marshall, the twenty-second; Lincoln and Pulaski, the twenty-third; Madison and Garrard, the twenty-fourth; Laurel, Whitley, Knox, and Rockcastle, the twenty-fifth; Gallatin, Carroll, and Boone, the twenty-sixth; Kenton and Campbell, the twenty-seventh; Bourbon and Bath, the twenty-eighth; Grant, Pendleton, and Owen, the twenty-ninth; Harrison and Bracken, the thirtieth; Fayette and Scott, the thirty-first; Woodford, Jessamine, and Franklin, the thirty-second; Clarke, Montgomery, and Estill, the thirty-third; Carter, Greenup, and Lawrence, the thirty-fourth; Fleming and Nicholas, the thirty-fifth; Mason and Lewis, the thirty-sixth; Floyd, Morgan, Johnson, and Pike, the thirty-seventh; and Clay, Harlan, Owsley, Letcher, Perry, and and Breathitt, the thirty-eighth.

How polls to
be compared.

§ 3. That in order to ascertain the state of the polls, where two or more counties compose a senatorial district, or two or more counties are joined to elect a representative, the sheriffs of such counties shall meet at the court house of the county first named, to compare the polls, on the first Monday next after the commencement of the election; and after having ascertained, by faithful comparison and addition, the number of their respective polls, shall make return of the persons elected, in the manner prescribed by law: *Provided*, that when a writ of election shall be issued by the governor, or either branch of the leg-

islature, an earlier day may be ordered in such writ for comparing the polls, if it should be deemed expedient.

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§ 4. That if any new county should be established before the next enumeration and apportionment of representation, it shall be considered as part or parts of the county or counties from which it was taken, for the purpose of representation.

How new counties shall vote.

Approved March 8, 1851.

CHAPTER 396.

AN ACT further to provide for the collection of tolls on Kentucky, Green, and Barren rivers.

§ 1. *Be it enacted by the General Assembly of the Commonwealth of Kentucky,* That it shall be the duty of the collectors of tolls on the Kentucky, Green, and Barren rivers, to administer to the officers of steam, flat, and keel-boats, plying on said rivers, such oaths or affirmation in reference to their manifests of freight and passengers, upon which tolls are collectable, as are now prescribed by law to be administered by justices and notary publics.

Duty of Collector.

§ 2. The collectors on said rivers shall not receive tolls on any manifest presented to them, until the owner, master, clerk, or other officer producing the same shall make oath before him that said manifest contains a full and complete statement of the passengers and freights transported by such boat for the trip it purports to represent, agreeably to the rules and rates prescribed by the board of internal improvement for the payment of tolls.

Collector not to receive manifest until sworn to.

§ 3. It shall be the duty of any collector on said rivers, who shall have reasonable ground to believe any fraud has been practiced by the rendering of false manifests, to visit any points on said rivers at which he may have reason to suspect such fraud may be detected, and exert himself diligently to obtain evidence thereof. Such collector shall appoint a responsible person as his deputy to receive toll during his absence, whose duties shall be the same, and whose acts shall be as binding upon all persons concerned as those of the collector himself: *Provided, however,* that the principal collector shall be responsible for the faithful discharge of the duties of his office, whether performed by himself or his deputy: *And, provided further,* that the collector shall, during his absence on business required by this section, receive one dollar and fifty cents per day and his traveling expenses, for the time he may be necessarily engaged.

Collector's duty when he suspects fraud, &c.

§ 4. Any steamboat that shall pass over any of the dams on either of said rivers, without landing at the collector's office and rendering a true manifest and paying full tolls, or any boat passing themselves through a lock with-

Liability of boats for any violation of this act.